CLIENT-FACING REFERENCE

Why You Need Legal Counsel for IEEPA Tariff Recovery

Even with CBP's CAPE portal coming online, self-filing carries real risk. Here's what's at stake.

You're Not Hiring Just Any Law Firm

Our team includes trade attorneys, licensed customs brokers, specialized CPAs, and dedicated project managers.

Billions
RECOVERED FOR CLIENTS

$0
UPFRONT COST TO YOU

100%
CONTINGENCY-BASED

The Supreme Court struck down all IEEPA tariffs in February 2026 and ordered full refunds of every dollar collected. CBP is building a portal (CAPE) to process claims administratively. Some importers assume they can handle this themselves. Here are six reasons why that assumption is dangerous.

01

Per-Entry Rolling Deadlines

Every import entry has its own clock. CBP finalizes entries about a year after import, triggering a strict 180-day protest window under 19 U.S.C. § 1514. Miss it and that entry's refund is gone permanently. An attorney monitors every entry so no deadline is missed.

02

Cross-Broker Data Reconciliation

Many importers used multiple customs brokers. Entry data is scattered across systems and formats. Incomplete data leads to underclaimed refunds or errors that trigger CBP scrutiny. Legal counsel reconciles everything into a single audit-ready package.

03

Tariff Stacking and Isolation

Most entries carry layered tariffs: IEEPA, Section 301, Section 232, and MFN duties. Only the IEEPA portion is refundable. Miscalculating which portion is IEEPA can trigger audits or leave money on the table. This requires legal analysis, not a calculator.

04

Classification and Valuation Risk

During the tariff period, many importers reclassified goods or adjusted values to reduce exposure. Filing for a refund invites CBP to review those changes. Aggressive positions can trigger penalties or disallowance. An attorney reviews compliance before filing.

05

Government Offset Defense

The government may reduce IEEPA refunds by offsetting them against other tariff liabilities (Section 232 or 301). Self-filers have no mechanism to challenge offsets. Attorneys actively defend against offset attempts and preserve the full refund.

06

CIT Litigation Backstop

If CBP denies or reduces a claim, the only path is the U.S. Court of International Trade. Only attorneys can represent importers in federal court. The outside CIT deadline is approximately February 2027. Self-filers who get denied have no recourse.

TIME-SENSITIVE

Entries from early 2025 are hitting their protest deadlines right now. Every week that passes, more entries age past the 180-day window and those refunds are lost permanently. This is not a future problem. It is a today problem.

WHAT ABOUT THE CAPE PORTAL?

The Portal Is a Filing Tool, Not a Legal Strategy

CBP's CAPE system lets importers submit refund claims electronically. It does not reconcile your data, isolate IEEPA from stacked tariffs, review your compliance history, compute interest, monitor per-entry deadlines, or defend you if CBP audits or offsets your claim.

Critically, recent CIT filings indicate that CAPE may not even cover entries that have already finally liquidated. Importers waiting for the portal to launch may discover that some of their entries are already outside the system entirely, and the only remaining path is a formal protest under 19 U.S.C. § 1514, filed now, not later.

The portal is a submission mechanism. Everything that determines whether you recover the right amount, on time, and without triggering problems still requires legal and trade expertise.

CRITICAL: ATTORNEY-CLIENT PRIVILEGE

Only an Attorney Can Protect What You Say

Many importers made sourcing, classification, or valuation decisions during the tariff period that created compliance risk. Some importers are telling us they deliberately reclassified goods to reduce their tariff exposure. That is a conversation you can only have with a lawyer.

If those same facts are disclosed to a non-attorney consultant, customs broker, or filing service, they become discoverable by CBP and can be used against you. Attorney-client privilege exists specifically to protect these conversations. A consultant has no privilege. What you tell them can become evidence. Only an attorney can help you navigate the refund process while protecting you from your own compliance history.

BOTTOM LINE

Free Consultation. Contingency Fee. Zero Risk to You.

The initial consultation with our expert trade attorneys costs you nothing. You'll get a professional assessment of your specific situation, your estimated refund amount, and a clear explanation of the process and timeline. No obligation. No pressure. Just information from people who have recovered billions of dollars for business owners in the last few years alone.

If you choose to move forward, the entire engagement is contingency-based. **You pay nothing unless we put money back in your account.**

The risk of self-filing is real: missed deadlines, underclaimed refunds, triggered audits, offset losses, and zero privilege protection. The cost of working with legal counsel is zero unless it works. **There is no rational reason to go it alone.**

Schedule Your Free Consultation

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